

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

FLOR MARQUEZ,

Petitioner

VS.

CRYSTAL MARQUEZ,

Respondent

) Case Number: FDV-25-818782

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS, SEAL MEDICAL  
RECORDS/MILITARY IDENTIFICATION, AWARD SANCTIONS

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Flor Bermudez-Marquez and Respondent Crystal Marquez.
- 2) On 2/10/26, Respondent filed a Request for Order seeking an order sealing medical and military records attached as Exhibits C and D to Petitioner's Supplemental Declaration filed 1/5/26 and Family code section 271 sanctions. Respondent asserts that Petitioner publicly filed Respondent's confidential Veteran's Affairs (VA) medical records and unredacted military identification card, which include private medical information and highly sensitive information. The matter was set for hearing on 5/5/26.
- 3) On 2/10/26, Respondent filed an Income and Expense Declaration.
- 4) On 4/28/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for Order. Petitioner asserts that this motion is duplicative to the motion on calendar on 6/4/26 (i.e., Respondent's Request for Order filed 2/4/26) and the substantive answer was filed in response to the motion on calendar on 6/4/26.

1       5) The Court notes the following:

2           a. On 2/4/26, Respondent filed an identical motion to the motion filed 2/10/26 as set forth  
3           above. The matter was set for hearing on 4/28/26 and continued to 6/4/26 at Petitioner's  
4           request.

5           b. On 4/14/26, Petitioner filed a Responsive Declaration in opposition to Respondent's  
6           request for sanctions. Petitioner asserts that the "VA Rating Decision and Veteran ID are  
7           directly relevant to Respondent's income and financial circumstance, which are squarely  
8           at issue in both this DVRO proceedings and the parallel dissolution action." Petitioner  
9           further asserts that Respondent's request for sanctions is procedurally defective.

10          Petitioner does not oppose Respondent's request to seal.

11 **B. Findings and Order**

12       1) The Court finds a party's request to seal court records can easily conflict with the public's  
13       significant interest in accessing the records of proceedings before their courts.

14       2) The First Amendment provides the public the right of access to ordinary civil trials and  
15       proceedings. (*NBC Subsidiary (KNBC-TV), Inc. v. Super. Ct.* (1999) 20 Cal.4th 1178, 1212  
16       (KNBC-TV).)

17       3) This right of access applies to divorce proceedings in the same way it applies to ordinary civil  
18       cases. (*In re Marriage of Burkle* (2006) 135 Cal.App.4th 1045, 1070.)

19       4) These rights are protected through the Rules of Court and cannot be modified by agreement.  
20       "Unless confidentiality is required by law, court records are presumed to be open." (Rules of  
21       Court, rule 2.550, subd. (c).) The court must not permit a record to be filed under seal based  
22       solely on the agreement or stipulation of the parties. (Rules of Court, rule 2.551, subd. (a).)

23       5) The Rules of Court require specific factual findings. "The court may order that a record be filed  
24       under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that  
25       overcomes the right of public access to the record; (2) The overriding interest supports sealing the  
26       record; (3) A substantial probability exists that the overriding interest will be prejudiced if the  
27       record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive  
28       means exist to achieve the overriding interest." (*Id.* at subd. (d); see also *KNBC-TV, supra*, at  
29

1217-18.) (See also *In re Marriage of Burkle* (2006) 135 Cal.App.4th 1045 [setting forth a four part test the moving party must overcome for a record to be filed under seal].)

- 6) These findings must be backed by factual proof. “A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (Id. at rule 2.551, subd. (b)(1).)
- 7) According to the rules above, the Court is required to identify facts, which are supported by an evidentiary showing to issue an order sealing records. This includes facts supporting an interest in sealing the records that overrides the public’s interest in accessing them. (See *In re Marriage of Nicholas* (2010) 186 Cal.App.4th 1566, 1576.)
- 8) In the instant matter, Respondent requests an order sealing medical and military records attached as Exhibits C and D to Petitioner’s Supplemental Declaration filed 1/5/26, which include Respondent’s confidential Veteran’s Affairs (VA) medical records and unredacted military identification card, containing private medical information and highly sensitive information.
- 9) Given that Respondent’s request pertains to medical records and sensitive identification information, the Court finds the proposed sealing meets the required burden and the sealing of Exhibits C and D to Petitioner’s Supplemental Declaration filed 1/5/26 is narrowly tailored to specific identifying information.
- 10) Accordingly, Respondent’s request for an order for sealing is GRANTED.
- 11) Respondent’s Request for Family Code section 271 sanctions is DENIED.
- 12) The hearing on 6/4/26 is VACATED.
- 13) Counsel for Respondent shall prepare the Findings and Order After Hearing.
- 14) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).